SUPREME COURT OF INDIA

APPELLATE JURISDICTION · THREE-JUDGE BENCH

Criminal Appeal No. 907 of 2002

CNR: SCIN010009072002

Date: 12 September, 2002

Citation: (2002) 8 SCC 87

CORAM: Hon'ble M.B. Shah, B.N. Agrawal, Arijit Pasayat, JJ.

Petitioner: K.G. Premshanker

- VERSUS -

Respondent: Inspector of Police & Another

DOMAIN: CRIMINAL PROCEDURE & EVIDENCE RELEVANCY

STATUS: Good Law (Binding 3-Judge Precedent)

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Previous judgment of a civil court is not binding in all cases on criminal proceedings. The criminal court has to decide guilt or innocence independently based on the evidence adduced before it under the standard of proof beyond reasonable doubt.

STATUTES APPLIED: Sections 40 to 43 Evidence Act, Section 482 CrPC

DISPOSITION: QUASHING REFUSED; INDEPENDENT CRIMINAL TRIAL UPHELD

EXECUTIVE RATIO SUMMARY:

Three-judge bench held that a judgment or decree of a Civil Court is not conclusively binding on a Criminal Court, and criminal proceedings cannot be quashed automatically merely because a civil suit on similar facts succeeded or failed.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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